

Important Information for Tentative Rulings and Hearings:

1. Please review and follow the Tentative Ruling Instructions which can be found on the Court's website using the following link: <https://sf.courts.ca.gov/divisions/unified-family-court/ufc-tentative-rulings>.
2. If you wish to make an objection to the Tentative Ruling in your case, you must notify the other party (unless there is a restraining order in place) and the Court Clerk in the Department where the hearing is scheduled of your objection by 4:00 PM the Court day prior to the hearing date. Court days do not include Court holidays, Saturdays, or Sundays. The Court's Holiday Schedule can be found on the Court's website using the following link: <https://sf.courts.ca.gov/general-information/holiday-schedules>.
3. To contact the Court Clerk in Dept. 403 to make an objection to the Tentative Ruling in your case, please call (415) 551-3741 or send an email to Department403@sftc.org.
4. To contact the Court Clerk in Dept. 404 to make an objection to the Tentative Ruling in your case, please call (415) 551-3744 or send an email to Department404@sftc.org.
5. To contact the Court Clerk in Dept. 414 to make an objection to the Tentative Ruling in your case, please call (415) 551- 3756 or send an email to Department414@sftc.org.
6. When you contact the Court Clerk to make an objection to the Tentative Ruling in your case, please specify the paragraph(s) and / or line number(s) of the Tentative Ruling which contains the language to which you object.
7. You may appear at your hearing either (a) in-person; (b) by video; or (c) by phone. Pursuant to SFLR 11.7(D)(4), if you choose to appear by video or phone, you must be continuously connected to Zoom from 8:50 a.m. until 12:00 p.m. or until your hearing is concluded (or from 1:20 p.m. until 4:30 p.m. or until your hearing is concluded, if your hearing is scheduled to start at 1:30 p.m.). If you fail to appear in-person, by video, or phone, the Court may proceed with the hearing in your absence. The Court is not required to contact you before your hearing.
8. If you choose to appear by video or by phone, you must comply with the Notice and Instructions for Remote Appearances in San Francisco Family Court set forth below.

**SAN FRANCISCO SUPERIOR COURT
UNIFIED FAMILY COURT
NOTICE AND INSTRUCTIONS FOR REMOTE APPEARANCES**

You may appear at your court hearing either (1) in-person or (2) remotely by video or telephone. If you fail to appear in-person or remotely by video or telephone, the court may proceed with the hearing in your absence. **The clerk will NOT contact you.** Remote appearances by video or telephone can be made utilizing the **ZOOM** platform, **effective January 2, 2024:**

- If you are *joining by video*, go to www.zoom.com/join and follow the instructions below:
 - Type in the Meeting ID (*see below for department Meeting IDs and Passcodes*) and click "Join".
 - Click "Launch Meeting" then "Open zoom.us".
 - Zoom will launch and you will be asked for the Meeting Passcode. *Enter the passcode for your Meeting ID for the respective department for your court hearing.*
 - Enable your camera and click "Join".
 - Once you join, a prompt to use computer audio will appear, click "Join with Computer Audio".
 - **Enter your full first and last name TO IDENTIFY YOURSELF TO THE COURT.**
 - Using headphones may help you hear more clearly.
- If you are *joining by phone*, dial 1-(669)254-5252 or 1-(669)216-1590 and enter the Meeting ID and Passcode as described below.

Department 403
Meeting ID: 161 463 0304
Passcode: 114482

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1614630304?pwd=OTZ1cVZaQlRYWXPfQ2hTaEFuZnhIZz09>

Department 404
Meeting ID: 161 305 3325
Passcode: 282709

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1613053325?pwd=SkdXWGVkQkQowckJSNnJwSSStYkR6dz09>

Department 414
Meeting ID: 161 123 0725
Passcode: 040696

You can also log into your hearing **directly** using the link below:
<https://sftc-org.zoomgov.com/j/1611230725?pwd=d1JPVDZmSEZTMlpuODhJVtZ4ZE1FZz09>

When you join the hearing on Zoom:

1. **You are to mute your audio when you are not speaking.**
2. State your name before you speak for proper identification to the court and for all the parties in your case. Only one person **MUST** speak at a time.

PROHIBITION ON RECORDING: **Do not record the hearing in any way.** Any recording of a court proceeding, *including screen shots, other visual or audio copying* of the hearing, is **prohibited**. Any violation is punishable to the fullest extent under the law, including but not limited to monetary sanctions up to \$1,000, restricted entry to future hearings, or other sanctions deemed appropriate by the court.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

EMILY S PITCHER,

Petitioner

VS.

NOAH REID,

Respondent

) Case Number: FPT-23-378239

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REIMBURSEMENT PROTOCOL: REGARDING MOTHER'S REQUEST FOR A CLEAR WRITTEN
PROTOCOL REQUIRING RECEIPTS, ITEMIZATION, AND ORGANIZED SUBMISSION, SO
NEITHER PARTY MUST RECONSTRUCT LARGE RECEIPT PRODUCTIONS; REQUEST FOR
ORDER CHANGE OF VISITATION (PARENTING TIME), SEE #7, ORDER SHORTENING TIME

TENTATIVE RULING

I. Custody and Visitation

The parties are ordered to appear in person or via Zoom video on 5/7/2026 at 9:00 AM in
Dept. 404. If a party chooses to appear by video, that party must abide by the Notice and
Instructions for Remote Appearance in San Francisco Family Court set forth above.

**II. Mother's Request for Protocol to Organize Requests for Child Support Add-On
Reimbursements**

A. Procedural History

- 1) At the prior 3/10/2026 hearing, the Court took under submission the parties' requests related to
child support add-on expenses and how to interpret various provisions of the Stipulation and
Order Re: Custody, Visitation, and Move to Oregon filed on 9/11/2025.

- 1 2) On 4/3/2026, the Court issued a Findings and Order After Hearing which adjudicates the parties’
2 disputes related to child support add-ons and which sets a future hearing date of 5/7/2026 on
3 Mother’s request for a “clear written protocol requiring receipts, itemization, and organized
4 submission, so neither party must reconstruct large receipt productions.” The Court ordered the
5 parties to file and serve written declarations (not to exceed 2 pages) at least 5 calendar days in
6 advance of the 5/7/2026 hearing outlining their proposed protocol.
- 7 3) On 4/30/2026, Father filed a Reply Declaration wherein he proposes the following reimbursement
8 protocol:
- 9 a. Parties to continue exchanging spreadsheets for expenses with a column for the parties to
10 either agree or disagree with the expense and to state the reason for that disagreement as
11 to that specified receipt
 - 12 b. Parties to exchange spreadsheets by the 10th of each month
 - 13 c. Each party to have 5 days to review and respond to the other party’s spreadsheet
 - 14 d. Parties to upload receipts to Google Drive
- 15 4) On 5/1/2026, Mother filed a “Reply Declaration in Support of Request to Continue or Narrow
16 May 7, 2026 Hearing” wherein Mother asks the Court to continue the hearing on reimbursement
17 protocol. Mother did not include a suggested reimbursement protocol in her declaration.

18 **B. Findings and Order**

- 19 1) Mother’s request that the Court continue the hearing on all issues except for custody and
20 visitation is denied.
- 21 2) The Court finds good cause to adopt Father’s protocol with a few modifications and additions as
22 outlined below, effective immediately. The protocol outlined below shall supersede Paragraph 29
23 of the Stipulation and Order filed 9/11/2025, except that the last sentence of Paragraph 29 shall
24 remain in full force and effect (i.e., “The parents may use only the following methods to
25 reimburse each other: PayPal, Venmo, Zelle, check, or by direct transfer into the other’s
26 account.”)
- 27 a. By the 10th of each month, the parties shall exchange spreadsheets which outline all child
28 support add-on expenses incurred during the immediately preceding month that the
29

parties are required to pay per the Stipulation and Order filed 9/11/2025 and Findings and Order After Hearing filed 4/3/2026 (as modified by Section III of this order below).

- b. By the 10th of each month, the parties shall also upload to a shared Google Drive folder copies of receipts for each claimed add-on expense for the immediately preceding month.
- c. No later than the 15th of each month, the parties shall reimburse to the other party all child support add-on expenses incurred for the immediately preceding month they are required to pay as set forth in the Stipulation and Order filed 9/11/2025 and the Findings and Order After Hearing filed 4/3/2026 (as modified by Section III of this order below). For any child support add-on reimbursements paid, the party shall check a box indicating payment was made in a column which shall be included for this purpose in each party's spreadsheet. If, however, there is a dispute regarding a child support add-on reimbursement request, the party shall state the reason for the disagreement in a second column which shall also be included for this purpose in each party's spreadsheet. The parties shall thereafter meet and confer regarding any disagreed upon reimbursement claims no later than the end of each month.
- d. Father shall create a spreadsheet template for the parties to use for the above-outlined protocol forthwith. Father shall also create a shared Google folder for the parties to use to upload invoices and proof of payment for add-on expenses forthwith.

III. Father's Request to Strike Portion of Findings and Order After Hearing filed 4/3/2025

A. Procedural History

- 1) Following the hearing on 3/10/2026, the Court issued a Findings and Order After Hearing on 4/3/2026, which includes the following language in Paragraph B(3): "Flights Originating Outside San Francisco – Paragraph 27 requires the parties to share equally expenses 'for the child's transportation to / from exchanges' and requires the parties to 'work together to choose the most convenient and least expensive airline tickets' 'when the child must travel between parents.' The Court does not find that the parties' Stipulation requires the parties to share the cost of the ticket for a parent to fly to and from visits. Moreover, Paragraph 27 requires the parties to share the cost

1 of 'round-trip flight costs.' While there is no specific limitation that the child's flights originate
2 from and return to either San Francisco or Portland, the reference to 'round-trip' flight costs does
3 strongly suggest that the parties contemplated for travel to originate from and return to the
4 parents' home cities. In any event, to the extent Father is requesting reimbursement for the cost
5 for himself to fly to Oregon, from any point of origin, the Court finds that such expense is not
6 covered by Paragraph 27 because Paragraph 27 only refers to the 'child's' transportation."

7 2) Father requests in his Declaration filed 4/30/2026 that the Court vacate Paragraph B(4) of the
8 Findings and Order After Hearing filed 4/3/2026. Father argues that whether the parties should
9 share the cost of flights for Father to fly to and from Portland for visitation with Vela was not
10 raised in the parties' filings as a disputed issue. Father also states that the parties were previously
11 operating and negotiating under the assumption that parent's flights were covered under the
12 agreement. Father states, "Since this issue was not properly before the Court to decide, I did not
13 properly brief the issue including what wording I believe covers these expenses, and that the
14 parties clearly intended to include these expenses in this agreement by their actions since the
15 signing of the agreement. I request that the Court under CCP 473(b) vacate this portion of the
16 order and reserve this issue for our [May] 26, 2026 long cause hearing where it can be fully
17 briefed by both parties and properly decided. If the Court does not reserve this issue for the April
18 26 hearing, I will be forced to file a separate motion... I would like to avoid the unnecessary cost
19 of this motion since we already have a long cause hearing on May 26, 2026 where it could be
20 properly heard."

21 3) In Mother's declaration filed 5/1/2026, Mother did not address this issue, but instead asked that
22 the Court narrow the scope of the 5/7/2026 hearing to just issues related to custody and visitation
23 and that the Court continue the hearing on all other issues.

24 **B. Findings and Order**

- 25 1) Father's request to vacate Paragraph B(3) of the Findings and Order After Hearing filed 4/3/2026
26 is granted.
- 27 2) At the upcoming hearing on **5/26/2026 at 1:30 PM in Dept. 414**, the Court will reconsider: (a)
28 Father's request that the parties share equally the cost of a parent for flights for visitation with
29 Vela, including flights from or to a destination other than the parent's home city and (b) Father's

argument that the Stipulation and Order filed 9/11/2025 already contains language to this effect.
At least 10 calendar days in advance of the 5/26/2026 hearing, both parties shall file and serve a
declaration (not to exceed 3 pages in length, not including exhibits) briefing the Court on these
issues.

IV. Preparation of Order

- 1) Father's attorney shall prepare the Findings and Order After Hearing.
- 2) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the proposed order after hearing directly to the court. Failure to submit the order after hearing within 10 days may allow the other party to prepare a proposed order and submit it to the court in accordance with CA Rules of Court, Rule 5.125(d).

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JESSICA BRIGNOLO,

Petitioner

VS.

SIMON THORNEYCROFT,

Respondent

) Case Number: FDI-22-796491

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) The parties in this matter are Petitioner Jessica Brignolo (Mother) and Respondent Simon Thorneycroft (Father). The parties married on 6/12/2003. The parties agree their date of separation was in 2022 (but disagree as to the exact date), for a marriage of at least 18 years. The parties have one minor child, Siena (DOB: 9/26/2008, age 17). Mother is represented by attorney David Blacker. Father is represented by attorney Randy Rabidoux.
- 2) After the 12/11/2025 hearing date, per the Findings and Order After Hearing filed 12/23/2025, the Court made a finding that guideline spousal support would amount to \$6,349 per month based on: \$0 in income for Mother, \$11,390 per month for Father's salary and wages, \$7,451 in average monthly draws by Father from his business Perspective Branding, and \$9,714 in monthly personal expenses paid on Father's behalf by Father's business. The Court, however, awarded to Mother above-guideline temporary spousal support of \$8,500 per month effective 12/1/2025 after considering Mother's needs (including her monthly mortgage payment of \$3,593 and property tax payment of \$1,297) and Father's ability to pay. The Court noted that this amount was less

1 than the \$10,000 per month in support that Mother had requested given that the parties have been
2 separated for over three years, the Court's finding that Mother's earning capacity is not \$0, and
3 the fact that the minor child is in Father's care 100% of the time. The Court set a review hearing
4 date on 4/21/2026 (which was later continued to 5/7/2026 by agreement of the parties) "to review
5 child and temporary spousal and to review Father's request for a Gavron warning." The Court
6 also noted, "Given what has been pled to date, the Court intends to impute full-time California
7 minimum wage income of \$16.90 per hour to Mother at the next hearing date..."

8 3) On 4/28/2026, Mother filed a Supplemental Declaration. Mother states she has been diagnosed
9 with Major Depressive Disorder, Post-Traumatic Stress Disorder, and Social Phobia. Mother
10 states that these conditions limit her ability to obtain and maintain employment. However,
11 Mother states she has actively pursued employment over the last three months. Mother states she
12 has not had success in securing a position of employment despite good faith work search efforts
13 and the Court should not impute income to her. Mother also states that when looking at Father's
14 net income of \$200,000 from his business for 2025 and other factors, the guideline spousal
15 support figure should be higher than what the Court ordered in December 2025. Mother requests
16 that the Court increase her spousal support to \$9,423 per month or \$10,176 per month depending
17 on which proposed support calculation the Court chooses to use.

18 4) On 4/28/2026, Mother filed a Supplemental Statement of Support Calculation.

19 5) On 4/28/2026, Father filed a Declaration of himself and his attorney. Father states that his
20 business income for 2026 is lower than what it has been for 2025. Father asks the Court to
21 recalculate support so that it is lower and to impute Mother with full-time minimum wage
22 income. Father states Mother has not made an earnest effort to secure actual work. Father's
23 attorney also notes that there is "no showing that Petitioner receives disability benefits, has
24 applied for disability benefits, or has otherwise pursued a disability determination through any
25 governmental or insurance process."

26 6) On 4/28/2026, Father filed a declaration of CPA Jessica Little. Ms. Little states that the income
27 figures for Father upon which the current guideline support calculation is based are inaccurate
28 and also include errors by Father in his previously filed paperwork which led to higher than
29 accurate income figures.

- 1 7) On 4/30/2026, Mother filed Procedural Objections asking the Court to strike Father's attorney
2 declaration and the declaration of CPA Jessica Little. Mother argues, "Simon is treating this
3 review hearing as an opportunity to fast track a motion to modify temporary support in violation
4 of CCP Sec. 1005. There has been insufficient notice or an opportunity to respond to such
5 request for modification of temporary support. Jessica has not had an opportunity to review or
6 investigate Simon's 2026 claimed income despite repeated requests for documentation." Mother
7 also asks the Court to strike Father's Income and Expense Declaration filed 4/28/2026 because
8 Father provided no 2025 income documents.
- 9 8) On 5/1/2026, Father filed a Reply Memorandum of Points and Authorities. In addition to other
10 arguments made, Father argues that Mother "asks the Court to treat 2025 as the sole measure of
11 Simon's current earning capacity, while disregarding the loss years that preceded it and the sharp
12 decline reflected immediately afterward."
- 13 9) On 5/1/2026, Father filed an Opposition to Petitioner's Objections and Motion to Strike. Father
14 argues, "The [objected to] submissions do not raise unrelated claims or inject new subjects into
15 the case. They address the same support issues already before the Court and provide updated
16 evidence needed for the Court to discharge its review function... A support review hearing
17 necessarily requires current information."
- 18 10) The Court notes that the parties attended a Mandatory Settlement Conference on 4/3/2026 and a
19 Judicial Settlement Conference on 4/27/2026 but did not reach any agreements. There is a trial
20 setting conference currently set for 6/1/2026 in Dept. 405.

21 **1) Findings and Order**

- 22 1) Mother's request to strike Father's attorney's declaration, CPA Jessica Little's declaration, and
23 Father's Income and Expense Declaration (all filed on 4/28/2026) is denied.
- 24 2) The Court finds this review hearing was set for the limited purpose to review whether to impute
25 full-time minimum wage income to Mother and to issue a Gavron warning against Mother. To the
26 extent either party is requesting that the Court make new findings regarding Father's income
27 available for support, those requests are denied without prejudice. Either party may file a motion
28 to modify support if the parties believe there has been a material change in circumstance
29 impacting Father's income available for support.

- 1 3) Effective 5/15/2026, the Court hereby imputes to Mother full-time minimum wage income of
2 \$16.90 per hour, which amounts to \$2,929 per month. The Court notes that although Mother
3 states she has mental health diagnoses, Mother has not presented evidence to show that her
4 mental health diagnoses have disabled her and rendered her unable to work. The Court finds
5 Mother has the ability and opportunity to earn full-time minimum wage income. The Court also
6 finds that imputation of this amount to Mother is in the best interest of Siena, who is in Father's
7 care 100% of the time and is receiving no financial support from Mother at this time.
- 8 4) In accordance with the updated XSpouse calculation attached hereto and incorporated herein, the
9 imputation of income to Mother results in the following guideline support figures: \$5,104 in
10 temporary guideline spousal support payable by Father and \$469 in guideline child support
11 payable by Mother, for a net amount of \$4,635 per month in net support payable by Father to
12 Mother.
- 13 5) Effective 5/15/2026, the Court finds good cause to award to Father guideline child support of
14 \$469 per month payable by Mother. The Court also finds good cause to award to Mother effective
15 5/15/2026 above-guideline temporary spousal support of \$6,969 per month, for the reasons
16 already set forth in the Findings and Order After Hearing filed 12/23/2025. This results in net
17 support owed by Father to Mother of \$6,500 per month.
- 18 6) As the Court is imputing full-time minimum wage income to Mother and because Father has not
19 presented evidence to show that Mother's earning capacity is higher than full-time minimum
20 wage income, the Seek Work Order against Mother is terminated effective immediately. For these
21 same reasons, the Court also denies Father's request for a Gavron warning.
- 22 7) All other orders set forth in the Findings and Order After Hearing filed 12/23/2025 not in conflict
23 with this order shall remain in full force and effect.
- 24 8) Father's attorney shall prepare the Findings and Order After Hearing.
- 25 9) **Preparation of Order:** If you are directed by the court to prepare the order after hearing – within
26 10 calendar days of the hearing you must either: (a) Serve the proposed order to the other
27 party/counsel for approval, and follow the procedures set forth in CA Rules of Court, Rule
28 5.125(c), or (b) If the other party did not appear or the matter was uncontested, submit the
29 proposed order after hearing directly to the court. Failure to submit the order after hearing within

1 10 days may allow the other party to prepare a proposed order and submit it to the court in
2 accordance with CA Rules of Court, Rule 5.125(d).

Fixed Shares	Father	Mother	Monthly figures		Cash Flow		
#of children	1	0	2026			Guideline	Proposed
% time with NCP	0.00 %	0.00 %			Comb. net spendable	21482	21596
Filing status	HH/MLA	SINGLE	GUIDELINE		Percent change	0%	1%
# exemptions	2 *	1 *	Nets(adjusted)		Father		
Wages+salary	11390	2929	Father	18815	Payment cost/benefit	-4635	-4573
Self-employed income	7451	0	Mother	2667	Net spendable income	14181	14243
Other taxable income	9714	0	Total	21482	Change from guideline	0	62
TANF+CS received	0	0	Support		% of combined spendable	66%	66%
Other nontaxble income	0	0	Addons	0	% of saving over guideline	0%	54%
New spouse income	0	0	Guideln CS	-469	Total taxes	6747	6775
401(k) employee contrib	2583	0	S.Clara SS	5104	Dep. exemption value	0	0
Adjustments to income	0	0	Total	4635	# withholding allowances	0w	0w
SS paid prev marriage	0	0	CS range: -427--469		Net wage paycheck	5577	5577
CS paid prev marriage	0	0			Mother		
Health insurance	2993	0			Payment cost/benefit	4635	4686
Other medical expense	0	0			Net spendable income	7301	7353
Property tax expense	978	951			Change from guideline	0	52
Ded interest expense	1972	1967	Proposed		% of combined spendable	34%	34%
Charitable contributions	0	0	Tactic 9		% of saving over guideline	0%	46%
Misc tax deductions	0	0	CS	-493	Total taxes	262	120
Qual bus income ded	0	0	SS	5038	Dep. exemption value	0	0
Required union dues	0	0	Total	4545	# withholding allowances	0	0
Mandatory retirement	0	0	Saving	114	Net wage paycheck	2361	2361
Hardship deduction	0 *	0 *	Releases	1			
Other GDL deductions	0	0	Released to Mother				
Child care expenses	0	0					

Father pays Guideline SS, Proposed SS

Mother pays Guideline CS, Proposed CS

FC 4055 checking: ON

Per Child Information							
	Timeshare	cce(F)	cce(M)	Addons	Payor	Basic CS	Payor
All children	100 - 0	0	0	0	Father	469	Mother
	100 - 0	0	0	0	Father	469	Mother

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LUKASZ FILINSKI,

Petitioner

VS.

AUSSY M MANUHU,

Respondent

) Case Number: FDI-22-797233

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

The parties are ordered to appear in person or via Zoom video on 5/7/2026 at 10:00 AM in Dept. 404. If a party chooses to appear by video, that party must abide by the Notice and Instructions for Remote Appearance in San Francisco Family Court set forth above.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

JENNIFER JEAN PHILLIPS,

Petitioner

VS.

DAVID ERIC PHILLIPS-KERLEY,

Respondent

) Case Number: FDI-23-798937

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

ORDER TO SHOW CAUSE AND AFFIDAVIT FOR CONTEMPT

TENTATIVE RULING

The Court has been notified by the San Francisco Bar Association that attorney Don Emley is willing to accept appointment as Husband's contempt counsel. However, in light of the fact that Husband's financial circumstances have purportedly changed, the Court needs to assess whether Husband still qualifies for appointment of contempt counsel. The Court also needs to determine whether to consolidate the hearing on Wife's Order to Show Cause Re: Contempt filed 11/13/2025 with the hearing on Wife's Order to Show Cause Re: Contempt filed 4/24/2026. The parties are ordered to appear.

- 1) The parties in this matter are Petitioner Jennifer Jean Phillips (Wife) and Respondent David Eric Phillips-Kerley (Husband). The parties married on 1/3/1998. Wife contends the parties' date of separation is 3/31/2023, for a marriage of 25 years and 3 months. Husband contends the date of separation is "to be determined." Wife is self-represented. Husband is represented by attorney Steve Whitworth.
- 2) On for hearing is Wife's Order to Show Cause Re: Contempt filed 11/13/2025. Among other counts alleged, Wife alleges Husband failed to serve his Preliminary Declaration of Disclosure,

1 failed to reopen a required joint community account, failed to deposit Court-ordered funds back
2 into said account, failed to provide Wife with access credentials to the account, transferred funds
3 despite orders to freeze community accounts, withdrew \$29,000 from Husband's deferred
4 compensation account in April 2024 in violation of Family Code section 2040(a)(2), withdrew
5 \$11,000 from the deferred compensation account in October 2024 in violation of Family Code
6 section 2040(a)(2)), failed to pay forensic accountant fees as ordered, failed to pay attorney's fees
7 sanctions as ordered, and ceased paying the mortgage on the marital residence.

- 8 3) The hearing on Wife's Order to Show Cause Re: Contempt filed 11/13/2025 has been continued
9 several times and Husband has not yet been arraigned. At the prior 12/3/2025 hearing, the Court
10 made a finding that Husband was eligible for appointment of contempt counsel. At the prior
11 1/20/2026 hearing, the Court appointed attorney Terry Szusko and his law office as contempt
12 counsel for Husband. At the 1/20/2026 hearing, Mr. Szusko also stated that Father waives time.
13 The hearing on Wife's Order to Show Cause Re: Contempt was most recently continued from
14 3/13/2026 to 5/7/2026 because Husband's formerly appointed contempt counsel requested to be
15 relieved from his appointment.
- 16 4) The Court also notes that Wife filed a second Order to Show Cause Re: Contempt on 4/24/2026
17 that is currently set for hearing on 7/2/2026. There is currently no Proof of Service on file yet for
18 this second Order to Show Cause Re: Contempt.
- 19 5) **The Court has been notified by the San Francisco Bar Association that attorney Don Emley**
20 **is willing to accept appointment as Husband's contempt counsel. However, in light of the**
21 **fact that Husband's financial circumstances have purportedly changed, the Court needs to**
22 **assess whether Husband still qualifies for appointment of contempt counsel. The Court also**
23 **needs to determine whether to consolidate the hearing on Wife's Order to Show Cause Re:**
24 **Contempt filed 11/13/2025 with the hearing on Wife's Order to Show Cause Re: Contempt**
25 **filed 4/24/2026. The parties are ordered to appear.**
26
27
28
29

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

LAURA HERNANDEZ,

Petitioner

VS.

JOSE EDGARDO LOPEZ ZARZA,

Respondent

) Case Number: FDI-24-800723

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

REQUEST FOR ORDER FOR CHANGE OF VISITATION

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Laura Hernandez (Mother) and Jose Edgardo Lopez Zarza (Father) were married on 5/29/2019 and separated on or about 8/3/2024. The parties have one minor child together, Sebastian (DOB 9/2/2020, age 5). A Stipulation and Order filed 12/10/2024 provides that the parties shall have joint legal custody and that Mother shall have sole physical custody. The schedule is as follows: Father shall alternate between two schedules. Week 1 - Father shall have every other Saturday at 9am to Sunday at 7pm; Week 2 – Father shall have every other Sunday at 9am to Monday morning drop off at school. If Father is not able to follow the schedule due to his work schedule, the order requires the parties to identify other times in the week to assure parenting time for Father.
- 2) On 2/11/2026, Mother filed a request for modification of the 12/10/2024 order and seeks sole legal and physical custody. She states that while the order anticipated that the parties would agree on schedule adjustments due to Father’s work, that arrangement “has proven unworkable and destabilizing for Sebastian.” Mother states that Father does not honor the requirement of mutual

1 agreement and repeatedly asserts he has the right to see Sebastian whenever he wants, regardless
2 of the schedule or Sebastian's needs. She states that Father has been hostile towards school staff,
3 repeatedly calling Sebastian's teacher and asking whether Sebastian is at school and who is taking
4 him to school. She states that Sebastian says that Father frequently scolds and punishes him, and
5 that on at least one occasion, Father spanked Sebastian with enough force to leave a visible
6 bruise. Mother states that based on Father's past violence towards her and his hostile conduct
7 towards her and Sebastian during exchanges, she is concerned about Sebastian's emotional and
8 physical safety while in Father's care. She proposes that Father have parenting time every other
9 weekend from Saturday at 10am to Monday, school drop-off. She wishes to have the parties
10 communicate through an app like Our Family Wizard. During the weeks when Father does not
11 have weekend parenting time, she wishes for Father to have parenting time on Monday after
12 school to Wednesday morning drop off. She also asks that the parent beginning their custodial
13 time be responsible for transportation.

14 3) Father did not file a response to the request.

15 4) The parties attended mediation and did not reach an agreement. Mother asked for the same
16 parenting time for Father that she asked for in her request. Father requested that he be permitted
17 to give one week's notice for visits and for Mother to do the same if she would like Sebastian to
18 be in his care.

19 **B. Findings and Orders**

20 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
21 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
22 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
23 child is the United States.

24 2) The Court finds it is in the minor child Sebastian's best interest to maintain the current order for
25 joint legal custody and for Father to have parenting time as follows: Father shall alternate
26 between two schedules. Week 1 - Father shall have Saturday at 10am to Monday morning drop
27 off at school (or 9am if school is not in session); Week 2 – Father shall have every other Sunday
28 at 9am to Monday morning drop off at school (or 9am if school is not in session). The party
29 beginning their custodial time shall be responsible for transportation of Sebastian.

- 1 3) The Court finds that the rescheduling of visits based on Father's work schedule is not in
2 Sebastian's best interest at this time. Therefore, if Father is unable to care for Sebastian during his
3 regularly scheduled parenting time, there will be no makeup time for him unless the parties agree
4 in writing to makeup dates and times (a text message or a message through Our Family Wizard or
5 similar app qualifies as a written agreement).
- 6 4) The parties shall upload the Our Family Wizard or Talking Parents or similar app and use that
7 communication method to discuss matters relating to Sebastian. All communication between the
8 parties shall be peaceful and respectful and only about the minor child.
- 9 5) The parties shall not use corporal punishment to discipline Sebastian.
- 10 6) All other orders not in conflict with these orders shall remain in full force and effect.
- 11 7) The Court will prepare the Findings and Order After Hearing.

SUPERIOR COURT OF CALIFORNIA
COUNTY OF SAN FRANCISCO
UNIFIED FAMILY COURT

AMBER BACCHUS,

Petitioner

VS.

RAYSHAWN DOMINIQUE WARD SR,

Respondent

) Case Number: FDV-25-818805

) Hearing Date: May 7, 2026

) Hearing Time: 9:00 AM

) Department: 404

) Presiding: AI MORI

OTHER REVIEW HEARING

TENTATIVE RULING

Having read and considered the pleadings, declarations, and other evidence submitted in this matter, the Court makes the following findings and orders:

A. Procedural History

- 1) Amber Bacchus (Mother) and Rayshawn Dominique Ward, Sr. (Father) have one minor child together, Rayshawn, Jr. (DOB 2/14/2024, age 2).
- 2) On 12/31/2025, this Court denied Mother's request for a domestic violence restraining order against Father and granted her sole legal and sole physical custody of Rayshawn, Jr. The Court ordered that beginning 1/6/2026, on Tuesdays and Thursdays, Father shall pick up Rayshawn, Jr., from daycare at 5pm and return him to Mother at 7pm at the SFPD Bayview Police Station. The Court ordered that if the daycare hours change, Father shall pick up Rayshawn, Jr., at whatever time daycare ends and return him 2 hours later to Mother at the SFPD Bayview Police Station. The Court ordered that the parties may have peaceful written communication, only regarding their child, and only through the Talking Parents app. The Court scheduled a review hearing for 4/20206, which was continued to 5/7/2026.
- 3) On 3/17/2026, Father filed an update declaration in which he states he is early to every visit and communicates with Mother in a healthy, positive manner. He states he missed only one visitation

1 due to miscommunication regarding the exchange location (he therefore asks that exchanges
2 occur at Ingleside Police Station between 5pm and 5:30pm) and that the only other missed visits
3 were due to Rayshawn, Jr., having doctor's appointments because he was sick. He states he
4 provides for Rayshawn, Jr., by purchasing diapers, clothing, and other items. He states that the
5 current schedule limits his ability to spend quality time with Rayshawn, Jr.; he therefore requests
6 joint legal and joint physical custody, with a 2-2-3 schedule or, in the alternative, from 5pm to
7 7pm on Tuesdays and Thursdays and alternating weekends, from Friday at 5pm to Sunday at
8 5pm.

- 9 4) On 5/1/2026, Father filed a supplemental declaration stating Mother has not allowed him to see
10 Rayshawn, Jr., for two weeks "on the alleged basis of him being sick." He states he did not
11 receive a doctor's note from Mother until after Rayshawn, Jr., had missed several days of daycare
12 and visits. Father believes Mother is alienating him from Rayshawn, Jr., and he reiterates his
13 request for joint legal custody and equal parenting time. In the alternative, he asks for Tuesdays
14 and Thursdays from 5pm to 7pm and alternating weekends, from Friday at 5pm to Monday at
15 8am.

- 16 5) Mother has not filed an update declaration as of the time of the tentative ruling.

17 **B. Findings and Orders**

- 18 1) This Court has jurisdiction to make child custody orders in this case under the Uniform Child
19 Custody Jurisdiction and Enforcement Act. A violation of this order may subject the party in
20 violation to civil or criminal penalties, or both. The country of habitual residence of the minor
21 child is the United States.

- 22 2) **The parties shall appear in person or via Zoom video at 9am on 5/7/2026 in Department**
23 **404.**